

HEADNOTE

“Unanimous requests by all parties directed to a Local or Regional Division to refer a counterclaim for revocation to the Central Division for decision will be granted unless strong counterarguments require a different decision.”

COURT

Local Division in Munich

PROCEEDINGS

Infringement action

PATENT

EP3666797

Antigen binding proteins to proprotein
convertase subtilisin kexin type 9
(pcsk9)

KEYWORDS

Article 33(3) UPCA

Rule 37 RoP

agreement of parties

discretion to refer counterclaim for revocati...

discretion to proceed with infringement pro...

discretion to stay infringement proceedings

Article 33

Competence of the divisions of the Court of First Instance

SUMMARY

The Local Division in Munich ruled on an infringement action. The patent at issue relates to antigen binding proteins to proprotein convertase subtilisin kexin type 9 (PCSK9). According to the headnotes of the decision, when all parties jointly request that a counterclaim for revocation be referred to the Central Division, such a request will be granted unless there are compelling reasons to decide otherwise.